

26NNCV02266 26NNCV02266

County: los-angeles

Division: Civil Law and Motion

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Motion: DEFENDANTS KALOUSD PANDAZOS AND DALILA PANDAZOS'S DEMURRER AND MOTION TO STRIKE

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Case Number: 26NNCV02266 Hearing Date: September 17, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

PERRY LAZAR,

Plaintiff(s),

vs.

KALOUSD
PANDAZOS, et al.,

Defendant(s).

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CASE NO.: 26NNCV02266

[TENTATIVE]

ORDER RE: DEFENDANTS KALOUSD PANDAZOS AND DALILA PANDAZOS'S DEMURRER
AND MOTION TO STRIKE

Dept.

3

8:30

a.m.

September

17, 2026

I. INTRODUCTION

Plaintiff

Perry Lazar ("Plaintiff") filed this action against defendants Kalousd Pandazos and Dalila Pandazos ("Defendants") on March 27, 2026. The operative First Amended Complaint ("FAC") was filed on June 23, 2026.

As described

in the FAC, Plaintiff and Defendants were previously involved in an extensively-litigated action titled Plone Trust, et al. v. Kalousd Pandazos, et al. (Case No. 21STCV09845) ("Quiet Title Action"). The Quiet Title Action, initiated in May 2021, sought to quiet title with respect to two parcels of property, referred to as Parcel 35 and Parcel 36. Plaintiff claimed to own

Parcel 36 after purchasing it in 2004, while Defendants claimed to own Parcels 35 and 36 when they purchased it in December of 2003. (FAC, ¶ 4.) The confusion was caused by the description of the property sold in the grant deeds. (FAC, ¶ 4.) Defendants' grant deed, recorded on December 9, 2003, only referenced Parcel 35, but legal description included the metes and bounds of both Parcels 35 and 36. (FAC, ¶ 4.) Plaintiff's deed, which was recorded on March 8, 2004, referred to Parcel 36 but the legal description only included a metes and bounds of the southern portion of Parcel 36. (FAC, ¶ 4.) The discrepancies in the legal descriptions and adverse claims to title only came to light in 2019 when Plaintiff attempted to sell the property. (FAC, ¶ 5.)

The Honorable

Armen Tamzarian issued a minute order on April 8, 2024, adjudicating the parties' claims for quiet title and finding in favor of Defendants. Defendants were dismissed from Plaintiff's Complaint on April 22, 2024, and judgment was entered in Defendants' favor on July 10, 2025.

In

the present action, Plaintiff asserts eight causes of action, two of which have since been dismissed. The pending claims are: (1) implied contract and quantum meruit, (2) equitable subrogation, (3) fraudulent concealment, (4) money had and received, (5) conversion, and (6) declaratory relief. Plaintiff seeks to recover the property taxes that he paid annually as well as the costs of maintenance from 2004 to 2024.

Defendants

filed this demurrer to Plaintiff's FAC on the grounds that it fails to state facts sufficient to constitute any cause of action and that the claims are time-barred. Defendants also filed a motion to strike Plaintiff's prayer for special damages, general damages, punitive and exemplary damages, compensatory and incidental damages, restitution, constructive trust, and unjust enrichment and quantum meruit.

Plaintiff

filed opposition briefs on September 4, 2026.

Defendants

filed reply briefs on September 9, 2026.

Plaintiff

filed an “objection” to Defendant’s reply brief on September 10, 2026.

Defendants

filed a response to Plaintiff’s “objection.”

Both parties

seek judicial notice of the grant deeds recorded and court documents filed in Los Angeles County Superior Court. The Court grants both requests for judicial notice.

II. LEGAL STANDARDS

A.

Demurrer

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.)

B.

Motion

to Strike

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).)

III. DISCUSSION

At the

outset, Defendants argue that Plaintiff's equitable claims to recover taxes paid on Parcel 36 should have been litigated in the Quiet Title Action. (Demurrer, p. 1.)

"The rule

against splitting a cause of action is based upon two reasons: (1) That the defendant should be protected against vexatious litigation; and (2) that it is against public policy to permit litigants to consume the time of the courts by relitigating matters already judicially determined, or by asserting claims which properly should have been settled in some prior action." (Wulfjen v. Dolton (1944) 24 Cal.2d 891, 894; see also McCloskey v. Carlton Builders (1985) 165 Cal.App.3d 689, 692.) "It is the title, right or obligation sought to be established or enforced, not the remedy or the relief sought, which determines the nature and substance of the cause of action. When this has once been adjudicated it cannot be re-litigated upon any grounds that were or that could have been determined in the former action." (Ideal Hardware & Supply Co. v. Department of Employment (1952) 114 Cal.App.2d 443, 448.)

Plaintiff, in response, argues that

this action did not accrue until judgment was entered in the Quiet Title Action because he did not sustain any legally actionable injury or damages until the Court established Defendant's ownership of Parcel 36. (Opp., pp. 11-12.) Plaintiff contends that issues of restitution would not have been appropriately determined in the Quiet Title Action because issues of damages are not appropriately adjudicated in a quiet title case.

On reply, Defendants reiterate that

Plaintiff's claims for amounts paid over two decades, from 2004 through 2024, are time-barred. (Reply, pp. 3-4.) Defendants add that Plaintiff could have sought restitution for taxes and maintenance in the previous Quiet Title Action as an alternative to ownership, and that Plaintiff's failure to do so precludes him from splitting his claim in a subsequent action. (Reply, pp. 4-5.) Defendants contend that "Plaintiff may not evade the finality of the prior judgment by repackaging the historical economic consequences of that same ownership dispute under new labels." (Reply, p. 5.)

Plaintiff objects to this argument as

“newly-raised” on reply and, in what amounts to a sur-reply, argues that the right of restitution and to be free from the wrongful deprivation of property is different from the right to title and possession. (Objection, pp. 3-4.)

Plaintiff claims that the judgment exclusively addressed the narrow issue of title and that none of the issues raised in this case were adjudicated in the previous matter. (Objection, p. 4.) This is not an entirely accurate representation as Judge Tamzarian’s order stated that Plaintiff failed to establish a triable issue of fact even if he maintained Parcel 36 and paid property taxes, and that Plaintiff argued that his “alleged payment of property taxes is relevant to the validity of the grant deeds and their claim of ownership of the disputed property.”

Also, Plaintiff’s claim that he could

not assert a restitution claim until judgment had been rendered in a quiet title action is incorrect. Typically, “a plaintiff seeking to quiet title might have to plead an offer to pay taxes or a mortgage debt.” (5 Witkin, Cal. Proc. 6th Plead § 669 (2026).) For instance, in *Vanderkous v. Conley* (2010) 188 Cal.App.4th 111, the appellate court affirmed the trial court’s order requiring the plaintiff to pay the defendant for a quitclaim deed, reasoning that the trial court “did no more than apply a fundamental maxim of equity jurisprudence and require [plaintiff] to ‘do equity’ in order to get equity.” (Id., p. 120.) In *Peckwith v. Lavezzola* (1942) 50 Cal.App.2d 211, a defendant was awarded compensation under the general prayer for “such other and further relief” and the court stated that “[h]aving acquired jurisdiction in this equitable action complete justice should be afforded by compensating the defendant for the value of his property which is taken.” (Id. at p. 220, 122 P.2d 678.) This principle is embodied in Code of Civil Procedure section 760.060 which provides that “[n]othing in this chapter limits any authority the court may have to grant such equitable relief as may be proper under the circumstances of the case.” (Code Civ. Proc., § 760.060, subd. (c).) Thus, contrary to Plaintiff’s assertion, the issue of restitution appears to have been ripe for disposition in the Quiet Title Action.

It may be possible for Plaintiff to

allege additional facts that show how he was prevented from litigating the presently-asserted equitable concerns in the earlier Quiet Title Action. Therefore, the demurrer is SUSTAINED with leave to amend as to the First, Second, and Sixth Causes of Action, which all seek to recover previously-paid taxes and maintenance costs on the basis of equity.

Plaintiff's Fourth Cause of Action for
Fraudulent Concealment

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 606.)

Plaintiff fails to allege facts with specificity showing that Defendants intentionally concealed a fact. Plaintiff alleges that Defendants' tax bill only identified Parcel 35. (FAC, ¶ 7.) There are no specific facts alleged showing Defendants knew that a fraudulent transfer took place in 2004. Moreover, Plaintiff does not allege facts showing that Defendants have an affirmative duty of disclosure. (See Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 44.)

Plaintiff's Seventh Cause of Action for
Conversion

"Conversion is the wrongful exercise of dominion over the property of another." (Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 451-452.) A plaintiff asserting a conversion claim must demonstrate the plaintiff's ownership or right to possession of personal property; the defendant's disposition of the property inconsistent with plaintiff's rights; and resulting damages.

Here, Plaintiff does not allege that Defendants exercised any dominion over Plaintiff's property; rather, Plaintiff identifies the money owed as "payments made to the tax collector" and the "expense of maintaining the property." No action by Defendants is alleged; Plaintiff's allegation that Defendants "have exercised dominion and control" is merely a legal conclusion. Therefore, the demurrer to the Seventh Cause of Action is SUSTAINED.

Plaintiff's Eighth Cause of Action for

Declaratory Relief

A plaintiff's

declaratory relief complaint must specifically allege that an actual, present controversy exists, and must state the facts of the respective claims concerning the disputed subject matter. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79.) Plaintiff alleges that an actual controversy exists between him and Defendants "concerning their respective rights and duties regarding the payment of taxes and maintenance of the property." (FAC, ¶ 37.) Plaintiff alleges that he "still receives bills and threats of collection from the County of Los Angeles" and that he seeks an order declaring Defendants are responsible for the payment of taxes and maintenance of Parcel 36 from 2004 to the present. (FAC, ¶ 37.)

First,

Plaintiff's claim for declaratory relief fails because his underlying claims fail. (*Bardin v. DaimlerChrysler Corp.* (2006) 136 Cal.App.4th 1255, 1277 [no actual controversy exists because claims underlying declaratory relief insufficiently alleged on the merits].) Second, Plaintiff does not allege a present controversy between him and Defendants, but with the County of Los Angeles, who continues to send tax default and collection notices. Last, Plaintiff's allegations regarding previously-paid taxes and maintenance costs are not a proper subject for declaratory relief. (*Cordoba Corp. v. City of Indus.* (2023) 87 Cal.App.5th 145, 157 ["There is no basis for declaratory relief where only past wrongs are involved..."].)

Accordingly,

the demurrer to the Eighth Cause of Action is SUSTAINED.

IV. CONCLUSION

Defendants' demurrer to the entire FAC is SUSTAINED. As it is the first demurrer that the Court has ruled on, the Court grants 20 days' leave to amend.

Defendants' motion to strike is MOOT.

Moving party to give notice.

Dated

this 17th
day of September
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.